

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-30

Served: June 24, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SECOND AMENDED SCHEDULING ORDER

On June 22, 2026,¹ Respondent filed ONE's Unopposed Second Motion to Extend Deadlines (R 2nd MTE"). Respondent states that it has made no further productions of documents since the May 8, 2026, initial production of 2,100 pages. Respondent attributes its lack of progress to Complainant's "broad discovery requests" confounding its "Generative Artificial Intelligence ("GenAI") prompt" that "[f]ollowing several iterative rounds of ONE collaborating with its data vendor to create the necessary GenAI prompt" necessitated the vendor to "recently switch[] over to the manual review of documents concurrent with the perfection of the GenAI prompt." R 2nd MTE at 2-3. Respondent now estimates that it will provide a second set of about 69,000 documents to Complainant sometime during the week of June 22, 2026, will review another 380,000 documents during the week of June 29, 2026, and will produce from that third set the week of July 19, 2026. *Id.* at 3. For its part, Complainant completed its production of over 150,000 pages to Respondent by May 29, 2026, in three rolling productions.

As good cause for another lengthy extension of the discovery deadlines, Respondent cites again to the large volume of documents and vendor issues it has experienced, as well as its need to carefully review the documents before production, and Complainant's need to review them after production to prepare for depositions. The April 24, 2026, Amended Scheduling Order noted that Respondent had not started producing documents or ESI at that time, granted a 60-day extension of the discovery and briefing schedule, and ordered Respondent to begin rolling productions of documents. In the two months since that order issued, Respondent has made only one, small production, and consequently, both parties have been unable to prepare for depositions of fact witnesses.

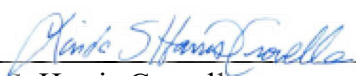
Because Complainant would be severely impacted by Respondent's delay in producing documents and ESI, Respondent's 2nd MTE is **GRANTED AS MODIFIED** to maintain the time allotted between deadlines. Respondent is cautioned that any further requests for extensions of time are unlikely to be granted, especially if they are filed less than seven days before the next

¹ While the motion is dated June 18, 2026, a Friday, it was filed Monday June 22, 2026.

approaching deadline. Accordingly, Respondent is **ORDERED** to begin rolling productions of documents and ESI no later than June 26, 2026, with a second production no later than the week of July 19, 2026. Respondent is urged to make smaller productions as soon as documents have been reviewed for quality control, rather than withhold them for later, larger productions. Accordingly, it is **FURTHER ORDERED** that the parties follow this schedule²:

July 28, 2026	Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories
July 28, 2026	Substantial completion of production of documents and ESI pursuant to initial requests
August 4, 2026	Parties file Joint Status Report 4 regarding status of discovery
August 27, 2026	Complete depositions of fact witnesses
August 27, 2026	Last day to serve interrogatories, requests for admission, and requests for production of documents
September 9, 2026	Disclosure of initial expert reports, if any
September 18, 2026	Disclosure of rebuttal expert reports, if any
October 2, 2026	Complete expert depositions
October 2, 2026	Close of discovery
November 2, 2026	Complainant's Brief, proposed findings of fact, appendix due
December 2, 2026	Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due
December 16, 2026	Complaint's Reply Brief, response to Respondent's proposed findings of fact due

If the parties have unresolved disputes regarding initial requests for production, ESI, or interrogatories that they intend to submit by the July 28, 2026, deadline, they must first request a status conference by emailing me at Judges@FMC.gov.



Linda S. Harris Crovella
Administrative Law Judge

² This amended schedule follows the time between deadlines established in the last schedule, apart from adding a day due to the Labor Day holiday, which extends the other deadlines by a day, as well.